

24NWLC27659 24NWLC27659

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-26

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Case Number: 24NWLC27659 Hearing Date: August 26, 2026 Dept: Y

24NWLC27659: CAPITAL ONE N.A. vs RICHARD ARELLANO

Tentative Ruling:

On August 4, 2026, the Court specially set the following motions filed by Defendant Richard Arellano ("Defendant"), which were filed by Defendant on July 29, 2026, for hearing on August 26, 2026:

- (1) Motion to Strike Plaintiff's Premature Memorandum of Costs;
- (2) Motion re Timing of Plaintiff's Witness Disclosure filed by Defendant; and
- (3) Motion Regarding the Admissibility of Plaintiff's Challenged Documentary Evidence.

In its Minute Order dated August 4, 2026, the Court requested that Defendant review the motions to determine whether they should remain on calendar. The Court has not received notice from Defendant that any of the motions should be taken off calendar. The Court also stated pursuant to the deadlines set forth in the Code of Civil Procedure, the parties could file oppositions and/or replies.

Motion to Strike Plaintiff's Premature Memorandum of Costs

The Court has read and considered Defendant's Motion to Strike Plaintiff's Premature Memorandum of Costs ("Motion to Strike"). No opposition has been filed by Plaintiff Capital One, N.A. ("Plaintiff").

The Court notes that in expedited collections matters, plaintiffs often file and serve memoranda of costs prior to trial together with other trial documents.

As such, the Court denies Plaintiff's Motion to Strike without prejudice.

Motion re Timing of Plaintiff's Witness Disclosure filed by Defendant

The Court has read and considered Defendant's Motion Regarding the Timing of Plaintiff's Witness Disclosure And Request for Appropriate Evidentiary Relief ("Motion Re Timing of Witness Disclosure"). No opposition has been filed by Plaintiff.

In the motion, Defendant asks the Court to find that the timing of Plaintiff's witness disclosure prejudiced Defendant's ability to prepare for the testimony of Plaintiff's witnesses and, on that basis, to limit or exclude the testimony of Plaintiff's witnesses.

Plaintiff filed and served its Statement of Witnesses and Evidence on May 28, 2026. Defendant received it on June 3, 2026. The matter was initially set for trial on June 2, 2026 and was subsequently continued by the Court to August 4, 2026. Over Plaintiff's objection, the Court then continued the trial from August 4, 2026 to September 15, 2026. Due to that continuance, any prejudice to Defendant from any delay in receipt of the Statement of Witnesses and Evidence has been eliminated.

Accordingly, the Court denies Defendant's Motion Re Timing of Witness Disclosure without prejudice.

Clerk to give notice.

Motion Regarding the Admissibility of Plaintiff's Challenged Documentary Evidence

The Court has read and considered Defendant's Motion Regarding the Admissibility of Plaintiff's Challenged Documentary Evidence ("Motion Re Evidence"). No opposition has been filed by Plaintiff.

In the motion, Defendant requests that the Court find Plaintiff has not satisfied the foundational and other evidentiary requirements under the California Evidence Code to admit unspecified "challenged documentary evidence," and on that basis to limit or exclude such evidence. Defendant does not identify the particular documents or exhibits he seeks to exclude.

Accordingly, Defendant's Motion Re Evidence is denied without prejudice. To the extent Defendant has specific objections to particular evidence offered at trial, Defendant may raise those objections at that time.

Defendant to give notice.